

Westpac Higuera, LLC v. Hamish Marshall, et al., 26CV-0135

Hearing: Motion to Consolidate

Date: August 12, 2026

In December 2017, RJH Investors, LP (RJH) sold real property located at 736-738 Higuera Street in San Luis Obispo (the Premises) to Westpac Higuera, LLC (Westpac). At the same time, RJH leased the Premises from Westpac pursuant to a Master Lease. In November 2025, RJH allegedly subleased the hotel Premises to Wilson and Wells, LLC and restaurant Premises to 3PM Group, LLC without Westpac's consent and sold the personal property. The subleases are allegedly in contravention of the Master Lease.

On March 6, 2026, Westpac filed this action, *Westpac Higuera, LLC, v. RJH Investors, LP, et al.*, Case No. 26CV-0135 (Breach of Lease Action), against RJH, Hamish and Julianna Marshall (individually and as trustees of their family trust), Rodney and Robin Cegleski (individually and as trustees of their family trust) (collectively the RJH Defendants) and Wilson and Wells LLC.¹

Two related unlawful detainer actions have also been filed: *RJH Investors, LP v. Wilson & Wells, LLC*, Case No. 26CV-0274 and *RJH Investors, LP v. 3PM Group, LLC* (26CV-0275) (collectively the UD Actions).

Case no. 26CV-0274, against defendant Wilson and Wells, sublessee to the hotel, is assigned to Department 4 and is currently set to go to trial on August 24, 2026. Case no. 26CV-0275 against 3PM Group, defendant sublessee to the restaurant, is currently assigned to Department 2 and is set to go to trial on August 12, 2026.

Wilson and Wells now moves to consolidate the Breach of Lease Action and UD Actions for all purposes. The RJH Defendants oppose the motion.²

“When actions involving a common question of law or fact are pending before the court, it may order a joint hearing or trial of any or all the matters in issue in the actions; it may order all the actions consolidated and it may make such orders concerning proceedings therein as may tend to avoid unnecessary costs or delay.” (Code Civ. Proc., § 1048(a).)

¹ Apparently, at the time Westpac filed the Breach of Lease Action, it was aware of only Sublessee Wilson and Wells, LLC. (Mtn., p. 4, fn. 1.)

² Notice of the motion was not filed in 26CV-0274 and 26CV-0275, however, Todd Fuson, Esq., represents both Wilson and Wells and 3PM Group, LLC, and the RJH Defendants filed an opposition. Additionally, Wilson and Wells' motion states in a footnote that although separate entities, the two sublessees act in a unified manner. (Mtn., p. 4, fn. 1.) Counsel for Westpac was served with notice of the motion as well. Westpac is not a party to the UD Actions and did not file an opposition here.

The trial court has the discretion to order that actions be consolidated. (*Todd-Stenberg v. Dalkon Shield Claimants Trust* (1996) 48 Cal.App.4th 976, 978.)

Wilson and Wells contends that the Breach of Written Lease Action and the UD Actions involve the Premises, the same parties or their privies and the same core dispute regarding the terms of the Master Lease and Subleases to the Premises, and right to possess the Premises.³

Wilson and Wells further argues that proceeding with these actions in separate departments risks inconsistent rulings on identical issues and would destroy the essential character and purpose of the UD Actions.

Where title or control of the Property is genuinely in dispute, an unlawful detainer action loses its summary character. Then, “the trial court has the power to consolidate an unlawful detainer proceeding with a simultaneously pending action in which title to the property is in issue. That is because a successful claim of title by the tenant would defeat the landlord's right to possession.” (*Martin-Bragg v. Moore* (2013) 219 Cal.App.4th 367, 385; see also *Asuncion v. Superior Court* (1980) 108 Cal.App.3d 141, 147.)

The RJH Defendants agree to consolidate the two UD Actions. However, the RJH Defendants oppose consolidating the Breach of Lease Action with the UD Actions.⁴

The RJH Defendants also contend that *Martin-Briggs* and *Asuncion* are readily distinguishable. They are that here, Sublessees have no claim to title of the Premises, and that there is no dispute that RJH is the current master tenant, and that Sublessees and RJH signed subleases allowing them to occupy and operate from the Premises and have done so since November 2025. Westpac, the owner of the Premises, did not file the UD Actions. Westpac’s Breach of Lease Action instead seeks damages. Master tenant RJH filed the UD Actions.

However, Westpac’s complaint seeks a decree finding the sublease null and void and that Wilson and Wells’ purchase of the personal property used in the operation of the Premises, and which under the Master Lease is to be assigned to Westpac upon termination of the lease, is null and void. (Cmpl., ¶¶ 24, 27, 34.) These issues are directly intertwined with the rights at issue in the UD Actions.

³ Wilson and Wells contends that Sublessees are unsure to whom they should pay rent. After the filing of the motion, the parties filed a stipulation that Wilson and Wells may pay its sublease rent directly to Westpac during the pendency of the litigation.

⁴ The RJH Defendants explain that on June 22, 2026, after filing this motion, Wilson and Wells filed another action, 26CV-0399, against RJH, Marshall, Cegleski and the real estate broker involved in the transaction. That action is currently assigned to Department 4. While the 26CV-0399 action was not included in this motion, the RJH Defendants maintain that it should be consolidated with the Breach of Lease Action. While it appears as if consolidation of that action may ultimately be appropriate, the Court notes that in addition to that action not at issue by the motion here, there are additional defendants in that action that have not been served or appeared. The Court will consider consolidation of that case pursuant to the stipulation of the parties or future motion.

The Court finds that there are common questions of law or fact in the three actions, that there is a risk of conflicting determinations in the various actions and that consolidation will further judicial efficiency and economy.

ORDER

The motion to consolidate the Breach of Lease Action with the Unlawful Detainer Actions for all purposes is granted.